ELTON MACHINDA GOMO

Versus

ZIMBABWE REVENUE AUTHORITY

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 16 September 2025 & 2 April 2026

Court application

P. Tererai, the applicant
T. L. Marange, for the respondent

DUBE-BANDA J:

[1] This is an opposed court application. The applicant is a Zimbabwean national, and the respondent is the Zimbabwe Revenue Authority, a body corporate established in terms of the Revenue Authority Act [*Chapter 23:11*] whose primary function is, *inter alia*, to act as the agent of the State in assessing, collecting, and enforcing the payment of all revenue, including customs taxes.

[2] For completeness, it is important to state that some of the documents attached as annexures in this application are ineligible. A document produced, whether as an exhibit or annexure, is in general produced for the truthfulness of its contents. Producing an ineligible document defeats this purpose. An ineligible document serves no useful purpose in litigation, and a court may ignore it in the determination of the matter, no matter what prejudice is occasioned to the party who produced it.

[3] The applicant seeks an order couched in the following terms:

i. That the application be and is hereby granted, the decision by the respondent to forfeit applicant's vehicle, Toyota Hilux registration number JVZ066EC be an is hereby set aside.
ii. That respondent shall unconditionally release applicant's vehicle Toyota Hilux registration number JVZ066EC to applicant or applicant's legal practitioners forthwith.
iii. That respondent shall pay the costs of suit on a legal practitioner scale (*sic*).

[4] These background facts provide the context. The applicant is the registered owner of the Toyota Hilux registration number JVZ066EC (the "vehicle"). On 1 September 2022, the applicant, together with his family, arrived at the respondent's compliance shed at the Beitbridge border post. When he presented his vehicle documents for final clearance, the officer noticed that the Temporary Import Permit ("T.I.P.") reference number PV57509 of 1 September 2022 and the insurance receipt had some discrepancies, and suspected that the documents were fake. The documents were in the name of one Chibanda David Maxim ("Chibanda") a national of Malawi, who was not at the Border Post at the time the TIP was issued. The applicant, the owner of the vehicle, produced an affidavit deposed to by him, authorizing this Chibanda to drive the vehicle. The applicant did not have a South African permit, which made the officer suspect that he was residing in South Africa outside the requirements of the law.

[5] After verifying the documents on Asycuda World, it was found that the T.I.P. reference number PV57509 of 1 September 2022 was out of range for that month, as the T.I.P. reference numbers as of 1 September 2022 were still below 35000, and Y assessment number Y12189 was a receipt for road access issued to ABC4686 for Brocklin Bus Services. The applicant was advised that his documents were fake and the vehicle was liable for seizure. The vehicle was seized on notice of seizure number 032676. The applicant sent his representatives to the respondent's Regional Manager requesting the release of the vehicle. He was informed by letter dated 12 September 2022 that the vehicle would be forfeited to the State in due course. The applicant appealed the decision of the Regional Manager to the Commissioner General, who upheld the decision and dismissed the appeal.

[6] The applicant's version is that he works in South Africa as a contractor. He drove the vehicle to the border post. He was approached by one Simbarashe Musekiwa ("Musekiwa"), who posed as a clearing agent. It is contended that Musekiwa advised that he could process the TIP and declarations while the applicant sat in his vehicle. The applicant avers that he gave Musekiwa the vehicle documents, his passport, and proof that he was awaiting renewal of his expired South African permit. He says he gave Musekiwa the sum of ZAR 2300.00 to pay for the TIP and other Border Post charges. He agreed to pay Musekiwa ZAR 1000.00 for his services. The applicant says that, unknown to him, Musekiwa prepared a false TIP, and

when he was advised that the documents were false and that the vehicle would be seized, Musekiwa disappeared.

[7] In its heads of argument, the respondent attacked the application on preliminary objections and on the merits. Regarding preliminary objections, it was contended that the application was not properly before the court; that there are material disputes of fact which cannot be resolved in motion proceedings; and that the new issues raised in the answering affidavit must be expunged from the record. At the hearing, Mr *Marange*, counsel for the respondent, informed the court that he was only persisting with the objection that the application was not properly before the court. Therefore, the remaining preliminary objections are considered abandoned, and no further reference shall be made to them in this judgment

[8] In motivating the objection that the application is not properly before the court, counsel argued that r 62(4) of the High Court Rules, 2021 provides that any proceedings by way of review shall be instituted within eight weeks of the termination of the suit, action, or proceedings sought to be reviewed. Provided the court may on good cause shown extend the time. It was submitted that this is an application for review, and it must have been filed within the timeline provided in r 62(4), or the applicant should have sought condonation and extension of time to file it outside the timeline. In addition, it was argued that the decision sought to be vitiated was made on 22 November 2022, and in terms of r 62(4) this application must have been filed on 22 January 2023; however, it was filed on 8 February 2023. Counsel argued that no condonation was sought, and therefore this application is out of time allowed by the rules of court, and therefore not properly before the court. It was sought that it be struck off the roll with costs.

[9] *Per contra*, the applicant contends that this is not an application for review and therefore it need not comply with r 62(4) of the High Court Rules, 2021. It was argued that it is a court application seeking to set aside the decision of the respondent to forfeit the applicant's vehicle.

[10] In considering this preliminary objection, it is important to look at the background to this matter, to the extent that it has a bearing on this issue. This application was initially heard before this court (per MHURI J), ("the first hearing") and a judgment was rendered in *Gomo*

v *Zimbabwe Revenue Authority* HC893/23. In the first hearing, the respondent raised a preliminary objection that the application was not properly before the court in that it was an application for review filed outside the timeline provided in r 62(4). The court held thus:

> "I earlier stated that I understand why applicant is denying that this is a review application. I would not be wrong to say this is because he was late in filing the application. He did not seek condonation for the late filing, a right which he was entitled to exercise in terms of r 62(4). That the application for review was out of time is not disputed. As submitted by the respondent, applicant chose expediency instead of propriety. He has himself to blame for his tardiness.
> I my considered view, the point in limine was properly taken and in uphold it. …..To that end therefore the application is hereby struck off with costs on the ordinary scale."

[11] Aggrieved, the applicant appealed to the Supreme Court. His appeal was anchored on one ground of appeal, which is this:

> "The court a quo erred in law and misdirected itself in finding that the eight-week period in r 62 of the High Court Rules, 2021 must still be counted from the making of the decision sought to be reviewed in circumstances were a litigant, such as the applicant, is barred by the provisions of the Customs and Excise Act [Chapter 23:02] as read with s 6 of the State Liabilities Act [*Chapter 8:15*] from instituting any review proceedings before giving 6o days' notice of instituting those proceedings."

[12] In the notice of appeal, the relief sought was that "the point *in limine* that the review is out of time is dismissed." The Supreme Court allowed the appeal, set aside the judgment, and remitted the matter to this court for a hearing *de novo* before a different judge.

[13] The notice of appeal did not challenge the fact that what was before court was an application for review. In essence, the challenge was premised on when the counting of the eight-week period should commence. In other words, at the Supreme Court the applicant accepted that this is an application for review. In any event, the view I take is that this is an application for review. It seeks to challenge, and to set aside the decision of the Commissioner General, an administrative authority. In addition, the Supreme Court, by allowing the appeal, agreed that the counting of the r 62(4) period cannot commence before the expiry of the sixty-day statutory notice period. It is on this basis that this preliminary objection must be determined.

[14] The decision sought to be impugned was made on 22 November 2022. The statutory notice was given on 5 December 2022 and expired on 5 February 2023. This application was

filed on 8 February 2023, i.e., three days after the expiration of the statutory notice period. Therefore, this review application was filed within the time allowed by r 62(4) of the High Court Rules, 2021. In the circumstances, the preliminary objection has no merit and cannot succeed. It is therefore refused.

[15] I now turn to the merits. The fact that the TIP was obtained by an agent is inconsequential. Firstly, in terms of s 218 of the Customs and Excise Act any person who appoints an agent to carry out any requirements of the Act shall be responsible for the actions of his or her agent. Therefore, the applicant cannot escape liability of the fake TIP. Secondly, it was the responsibility of the applicant to ensure that the correct declaration was made at the port of entry. The applicant did not produce evidence to the effect that he gave the clearing agent the correct documents to obtain a TIP. He had no resident permit, work permit, nor Zimbabwe Exemption Permit issued in South Africa or any foreign country to qualify for a TIP. Proof that he was awaiting renewal of his expired South African permit could not qualify him for a TIP. It was inconsequential. He did not qualify to temporarily import a vehicle to Zimbabwe. Therefore, the applicant cannot escape liability arising of the fake TIP.

[16] The applicant does not seek to impeach the notice of seizure. In fact, the notice of seizure is valid. It complies with the requirements of the law, it advised the applicant of his procedural rights, i.e., if aggrieved by the seizure, to institute court proceedings. He was also advised of the need to give the respondent notice of the intended proceedings in terms of s 196 of the Customs and Excise Act. The notice of seizure complies with s 193(6) of the Act. See *Rock Telecom Limited* v *Zimbabwe Revenue Authority* SC 52/24. It is therefore a valid notice of seizure.

[17] At the commencement of the hearing, Mr *Tererai,* counsel for the applicant, raised what he described as a point of law, which he submitted goes to the root of the matter. In this jurisdiction, it has long been established that a point of law can be raised and dealt with by the court at any stage of the proceedings. The primary exception is when the point of law requires new evidence not present on the record. Generally, the court will not allow a new point of law if it causes irreparable prejudice to the other party. See *Trustees, Leonard Cheshire Homes Zimbabwe Central Trust* v *Chite & Ors* 2010 (1) ZLR 631; *Muchakata* v *Nertherburn Mine* 1996 (1) ZLR 153 (S); *Nissan Zimbabwe (Pvt) Ltd v Hopitt (Pvt) Ltd* 1997

(1) ZLR 569 (S); *Zesa* v *Bopoto* 1997 (1) ZLR 126 (S). In *casu*, I am satisfied that the point of law raised by the applicant is one that can be raised at any time during the proceedings. It deals with an important issue arising from this matter, which the Supreme Court had occasion to pronounce itself on in *Rock Telecom Limited* v *Zimbabwe Revenue Authority* SC 52/24.

[18] The point of law raised by Mr *Tererai* is that the forfeiture was made contrary to the provisions of the law. In that the forfeiture was premature in that it was less than three months from the date of seizure as provided for in s 193(9) and 193(6)(b)(b) of the Customs and Excise Act.Counsel argued that the seizure was on 1 September 2022, and the forfeiture was on 22 November 2022. *Per contra,* Mr *Marange,* counsel for the respondent, submitted, referring to a letter dated 12 September 2022, that the forfeiture was not premature.

[19] The letter dated 12 September 2022 says, "the vehicle will be forfeited in due course." This meant that forfeiture was prospective. However, the letter dated 22 November from the Commissioner General says, "after a careful consideration of your grounds of appeal and the facts before me, please be advised that I am unable to vary the Commissioner of Customs and Excise decision to forfeit your vehicle. ….. The decision to forfeit your vehicle is upheld. If you are not satisfied with the decision to forfeit your vehicle, you may institute proceedings at the court for review." The record does not show the exact date of forfeiture; however, what is certain is that by 22 November 2022, a decision had been made to forfeit the vehicle. Based on this factual finding, the three months open window before the forfeiture of the vehicle should have expired on 1 December 2022. Therefore, the vehicle was forfeited less than three months after seizure. The forfeiture was therefore premature.

[20] In *Rock Telecom Limited* v *Zimbabwe Revenue Authority* SC 52/24, the court said the declaration of forfeiture was premature as it was declared before the lapse of the three months stipulated in s 193(9) of the Act. Further, it was held at para. 35 that:

> *"In casu*, seizure of the goods was on 22 November 2022. The respondent contended that the declaration of forfeiture was on 30 January 2023. A declaration of forfeiture was therefore effected after two months of the date of giving the notice of seizure, therefore falling short of the three months. The declaration of forfeiture was clearly premature. It was still within the discretion of the appellant to institute proceedings for the recovery of the seized goods. The Commissioner should have allowed the prescribed time to lapse. The declaration of forfeiture was therefore invalid."

[21] The *Rock Telecom Limited* v *Zimbabwe Revenue Authority* case applies with equal force in this matter. The forfeiture of the vehicle was premature and invalid. Therefore, the decision to forfeit the applicant's vehicle cannot stand. However, this court cannot order an unconditional release of the vehicle. This is so because the notice of seizure is valid. The vehicle is lawfully under seizure in terms of the Notice of Seizure number 03267L issued on 1 September 2022. It is only the forfeiture that is invalid because it was not made before the expiry of the timeline allowed by the law. It is for these reasons that this application must partially succeed.

[22] The applicant, having partially succeeded, it is only proper that each party bears its own costs.

In the result, it is ordered as follows:

i. The notice of seizure of the applicant's vehicle, a Toyota Hilux registration number JVZ066EC is valid and the vehicle is lawfully under seizure.
ii. The decision by the respondent to forfeit the applicant's vehicle, a Toyota Hilux registration number JVZ066EC, be and is hereby set aside.
iii. Each party shall bear its own costs.

Tererai Legal Practice, the applicant's legal practitioners
Zimbabwe Revenue Authority Legal Services Division, the respondent's legal practitioners